

# United States District Court for the District of South Carolina

## Piedmont Booksellers Guild v. City of Norvale

Case No. SYN-DSC-26-CV-0107 · City of Norvale's Answer to Complaint

Filed January 12, 2026

Defendant City of Norvale answers the numbered and unnumbered allegations of the complaint. The City admits that the Piedmont Booksellers Guild organizes free-to-attend Saturday book fairs at Cedar Commons and that literary readings and discussions are protected expression. The City denies that it adopted or administers the Paid-Speaker Permit Ordinance to favor, suppress, inspect, or discourage any viewpoint. The ordinance applies to a paid presentation whether its subject is local history, romance, religion, public policy, children's literature, or criticism of the City.

The City admits that recurring events require separate applications at least forty-five days before each date; that an organizer must provide the name, topic, and time of each paid speaker; and that the scheduled fees are \$240 per event plus \$45 per paid speaker. The City admits ordinary vendors who do not address an audience are outside the paid-speaker provisions. It further admits that written reasons are required when a permit is denied or conditioned for documented crowd, traffic, or municipal-resource risks.

The City denies that those requirements confer unbounded discretion or impose a tax on ideas. They collect operational information for events that combine retail tents, scheduled audiences, deliveries, and repeated use of a constrained downtown park. Except as expressly admitted, the City denies the complaint's allegations and demands proof.

## **Jurisdiction, Parties, and Event History**

The City admits that this Court has jurisdiction over properly pleaded federal claims and that venue is proper. It lacks knowledge sufficient to admit the Guild's membership details, internal finances, or statements attributed to unnamed members and therefore denies those allegations. The City admits the Guild has conducted fairs at Cedar Commons since 2019, usually with approximately eighteen to twenty-eight sellers. Based on permit records, the number of announced paid authors has generally ranged from four to seven when the program was disclosed.

The City admits the Guild announced February 14, April 11, June 13, August 8, October 10, and December 12 as proposed dates for 2026. An announcement does not itself reserve the Commons or displace another approved use. Separate review is necessary because street work, seasonal programming, emergency resources, and nearby events differ from month to month. The City denies that requiring a timely application necessarily prevents late changes. Staff may consider an amendment when time and operational circumstances permit, but the City admits the ordinance does not guarantee approval of a substitution after the deadline.

The City admits the fairs have not produced reported violence. It denies the implication that violence is the only legitimate safety concern. Cedar Commons borders two bus stops, a loading lane, and a signalized crossing. Concentrated reading sessions can narrow pedestrian movement even when the larger fair remains calm. Medical access, queue placement, vendor unloading, and routine traffic control require planning before an event.

## Responses Concerning the Ordinance

The City admits the ordinance was adopted August 18, 2025, and took effect October 1, 2025. It was developed after recurring-event organizers, transit personnel, nearby businesses, and public-safety departments reported uncertainty about staffing and site arrangements. The City denies that the legislative process targeted the Guild. The requirements apply across recurring public fairs, markets, exhibitions, and similar gatherings when an organizer pays speakers to draw or address an audience.

The speaker schedule assists administrators in estimating when and where listeners will concentrate. A topic description may be brief and is used to distinguish a scheduled address from ordinary vendor conversation and to understand the format represented by the organizer. The City denies reviewing a topic for ideological acceptability. It admits the ordinance does not prescribe particular wording for a topic description. Administrators instruct applicants that a short neutral description, such as “novelist reading and questions,” is sufficient unless the proposed activity itself creates a distinct operational feature.

The base fee offsets intake, site coordination, and written decision work common to each covered event. The per-speaker amount reflects incremental schedule review and anticipated audience transitions. The City denies the fee was calculated to generate general revenue, while admitting that exact staff time varies by application. Written risk findings must be supported by information in the application, prior comparable events, scheduling conflicts, departmental estimates, or other identifiable records. Conditions are intended to address the identified risk rather than to regulate a message.

## **Responses Concerning Burden and Safety**

The City lacks knowledge of the Guild's private sponsorship negotiations, author travel plans, or each member's tolerance for higher contributions. It therefore denies those allegations. It admits that an organizer presenting six paid speakers owes \$510 under the published schedule. It also admits that repeated applications across six dates produce repeated fees. The City denies that every fair will require the same number of speakers or that the ordinance forces the Guild to cancel any presentation. The Guild may use unpaid speakers, submit a timely planned program, seek an amendment, select another suitable public site, or alter event features, subject to otherwise applicable rules.

The City admits dispatch summaries reflect two minor medical calls associated with Guild fair dates and no violent incident. Those summaries do not measure staff planning, routine officer presence, near-conflicts at the loading lane, or congestion handled without a dispatched call. City personnel have observed temporary crowding near the central walk during author programs and vehicles waiting while sellers unload. The Guild disputes the frequency and significance of those conditions. The City maintains that preventive planning should not depend on waiting for a serious injury.

The City denies that vendors and paid speakers are similarly situated for operational purposes. A vendor's conversations occur diffusely at a table. A scheduled paid presentation asks attendees to gather at a known place and time, often followed by movement toward a signing table. The City agrees total attendance remains relevant and denies that compensation is used as a proxy for favored or disfavored content.

## Defenses

First, the complaint fails to state a facial claim because the ordinance contains neutral criteria, requires documented risks and written reasons, and has many constitutional applications.

Second, the City asserts that the Guild's as-applied challenge is premature to the extent no final decision has denied a complete application for a 2026 event. Informal questions about possible amendments do not establish that a particular author will be excluded. Third, the challenged provisions are content neutral, serve significant interests in safe and coordinated use of a limited public site, are appropriately tailored, and leave ample channels for literary expression.

Fourth, the requested injunction is broader than any established injury because it could prevent collection of schedule information directly relevant to crowd movement. Fifth, equitable relief should preserve the City's ability to impose objective event-specific conditions supported by records. Sixth, any fee relief should distinguish between a claim about the method of calculating charges and the City's authority to recover lawful administrative expenses. Seventh, the City reserves defenses arising from standing, ripeness, severability, and the precise scope of any completed application.

These defenses are pleaded in good faith on the present record. The City does not contend that payment strips speech of constitutional protection or that it may reject an author because of a subject or viewpoint. It disputes the Guild's characterization of planning information as expressive approval and maintains that a focused construction or narrower relief would be available before facial invalidation.

## **Requested Disposition**

The City asks the Court to deny declaratory and injunctive relief, enter judgment in its favor, and award any costs allowed by law. If the Court identifies a defect in a particular procedure, the City requests relief confined to that defect and preserving the ordinance's severable safety, scheduling, written-reason, and application provisions. The City is prepared to confer with the Guild about its announced dates and to evaluate complete submissions under the ordinance as written while this case proceeds.

The City also asks that any interim order state with specificity which acts are restrained and which neutral park requirements remain enforceable. Uncertainty would burden applicants and staff alike. The City continues to recognize that the Guild's fairs contribute to civic life, and it does not seek to exclude booksellers or authors from Cedar Commons. Its position is that recurring events may be coordinated prospectively without examining whether officials agree with what a speaker will say.

The City denies all allegations not expressly admitted. It reserves the right to amend this answer when permitted, including after receipt of a completed application, administrative record, or discovery concerning the Guild's claimed costs. No counterclaim is asserted. The City's response rests on the ordinance, the site, and available operational records rather than on the identity or viewpoint of any proposed author.

Respectfully submitted January 12, 2026, by counsel for the City of Norvale.